

HOUSE BILL 1330

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 20; Title 33; Title 38; Title 40; Title 52;
Title 55; Title 62; Title 63; Title 68; Title 70 and
Title 76, relative to the Less is More Act of 2025.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Less is More Act of 2025."

SECTION 2. Tennessee Code Annotated, Section 4-3-1304(a), is amended by deleting subdivision (4).

SECTION 3. Tennessee Code Annotated, Section 4-10-103(a), is amended by deleting all language before the colon and substituting:

The commission is composed of the following twenty-five (25) members:

SECTION 4. Tennessee Code Annotated, Section 4-10-103(d), is amended by deleting the subsection and substituting:

(d)

(1) Members are appointed for a term of four (4) years and may be subsequently appointed to additional four-year terms. Terms begin on July 1 and end on June 30 of the appropriate years. For members of the general assembly who serve on the commission, appointments and reappointments must be consistent with terms of office for the senate and the house of representatives.

(2) If any member ceases to be an officer, member, or employee of the unit, body, or agency the member is appointed to represent, such member's membership on the commission terminates immediately. Any position that

becomes vacant prior to the expiration of a full term must be filled only for the period of the unexpired term.

SECTION 5. Tennessee Code Annotated, Section 4-29-246(a)(39), is amended by deleting the subdivision.

SECTION 6. Tennessee Code Annotated, Section 4-51-103(f), is amended by deleting "thirty (30) days" wherever it appears and substituting "ninety (90) days".

SECTION 7. Tennessee Code Annotated, Section 8-44-108, is amended by deleting the section and substituting:

(a) As used in this section, unless the context otherwise requires:

(1) "Electronic means of communication" means real-time communication by video conference or audio conference and may include the use of an internet-based platform but does not include email;

(2) "Governing body" means the governing body of a board, agency, or commission of state government; and

(3) "Meeting" has the same definition as in § 8-44-102.

(b) A governing body may, but is not required to, allow participation by electronic means of communication for any meeting authorized by law for the benefit of the public or members of the governing body. A meeting of a governing body conducted with a member or members participating by electronic means of communication must comply with this section.

(c) If a meeting will be conducted with participation by a member or members of a governing body by electronic means of communication, then the governing body shall:

(1) Allow members of the public to:

(A) View and listen to the meeting by electronic means in real time if the meeting is conducted using video conference, or listen to the

meeting by electronic means in real time if the meeting is conducted using audio conference with no video; and

(B) Participate or provide comment by electronic means of communication, or by providing written comment through the use of an internet-based platform, if participation or public comment would normally be allowed at the meeting;

(2) Publish a notice and agenda as required by this part or other law that:

(A) States that the meeting will include members of the governing body participating by electronic means of communication;

(B) Specifies a physical location where members of the public may attend the meeting;

(C) Contains information necessary for members of the public to access the meeting by electronic means of communication to view or listen; and

(D) Contains instructions on how to provide public comment as described in subdivision (c)(1)(B), which may include contacting the governing body or registering in advance to receive information enabling a person to provide public comment. This subdivision (c)(2)(D) does not require a governing body to allow public comment as part of its meetings or alter its rules for public comment or public participation in a meeting;

(3) Make a recording of the meeting, and post the recording or a link to the recording on the governing body's website. The governing body shall post the recording or link to the recording as soon as possible but no later than three (3) business days after the meeting. The governing body shall continue to publish on its website the recording or link to the recording for at least one (1)

year, and shall retain the recording or link for at least three (3) years after the recording was created;

(4) Ensure that each part of a meeting required to be open to the public is audible to the public at the physical location specified in the notice of the meeting. Each member participating by electronic means of communication must be able to simultaneously hear each other and speak to each other during the meeting. A member participating by electronic means of communication shall identify the persons present in the room from which the member is participating;

(5) Prior to the meeting, provide to a member of a governing body participating by electronic means the same documents that will be discussed at the meeting with substantially the same content as those documents actually presented to members physically present; and

(6) Take a roll call vote for all votes taken during a meeting held pursuant to this subsection (c).

(d) A governing body shall meet with a quorum physically present no less than once per calendar year. If more than two (2) consecutive calendar years elapse without a governing body meeting with a quorum physically present, then the governing body shall report to the chairs of the government operations committee of the senate and the committee of the house of representatives with jurisdiction over subject matters pertaining to government operations that a physical quorum has not occurred in more than two (2) consecutive calendar years. The report must include the name of the governing body, the dates on which the governing body met with members participating by electronic means of communication, and the circumstances that prevented the governing body from meeting with a quorum physically present during that time period.

(e) This section does not prohibit a governing body from complying with § 8-44-109.

(f) Any meeting held pursuant to this section must comply with the requirements of the open meetings law, compiled in this part, and must not circumvent the spirit or requirements of that law.

(g) A member of a governing body participating in a meeting by electronic means of communication is considered physically present at the meeting for purposes of voting and for purposes of establishing a quorum. A member of a governing body participating in a meeting by electronic means of communication is not considered physically present for purposes of receiving compensation, whether denominated per diem or whatever name called, if the eligibility for compensation depends upon the member's physical presence at the meeting. However, a member may be reimbursed the expenses of such electronic communication or other means of participation.

(h) Notwithstanding this part to the contrary, § 4-5-312(c) controls electronic participation in contested case hearings pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, part 3; provided, however, that this section applies to meetings held to take summary action pursuant to § 4-5-320(c) and to review summary action pursuant to § 4-5-320(d)(2).

SECTION 8. Tennessee Code Annotated, Section 20-9-601(b), is amended by deleting the first sentence of the subsection and substituting:

The general assembly finds and declares that it is the policy of the state to promote the skill, art, and practice of court reporting in order to assure that court reporters possess the necessary skills and qualifications and that the commissioner of commerce and insurance shall prescribe the qualifications of court reporters and issue licenses to persons who demonstrate their ability and fitness for the licenses.

SECTION 9. Tennessee Code Annotated, Section 20-9-602(1), is amended by deleting the subdivision and substituting:

(1) "Commissioner" means the commissioner of commerce and insurance, or the commissioner's designee;

SECTION 10. Tennessee Code Annotated, Section 20-9-602(3), is amended by deleting "Tennessee board of court reporting" and substituting "commissioner".

SECTION 11. Tennessee Code Annotated, Section 20-9-604, is amended by deleting the section.

SECTION 12. Tennessee Code Annotated, Section 20-9-605, is amended by deleting the section and substituting:

The commissioner has the duty and responsibility to:

(1) Act on matters concerning competency for licensure only and the process of granting, suspending, reinstating, and revoking a license;

(2) Establish and maintain requirements for the ethical behavior of court reporters, including, but not limited to, conflict of interest provisions, inappropriate relationships with a party or a party's attorney, and failure to honor a contract or commitment to furnish transcripts;

(3) Establish a procedure for the investigation of complaints against licensed court reporters;

(4) Set a fee schedule for granting licenses and renewals of licenses;

(5) Maintain a current registry of licensed court reporters and a current registry of temporarily licensed court reporters, both of which are matters of public record;

(6) Adopt continuing education requirements for court reporters;

(7) Determine the content of and administer examinations to be given to applicants for licensure as licensed court reporters and issue numbered licenses to applicants found qualified;

(8) Maintain records of proceedings and a registry of all persons licensed by the commissioner, which must be a public record and open to inspection; and

(9) In the event funds are available from fees after expenses, study and, if feasible, establish the transcript reimbursement fund to assist indigent parties in obtaining transcripts.

SECTION 13. Tennessee Code Annotated, Section 20-9-606(a), is amended by deleting "chair of the board" and substituting "commissioner", and by deleting the language "board" wherever it appears and substituting "commissioner".

SECTION 14. Tennessee Code Annotated, Section 20-9-606(b), is amended by deleting "The board may, when it deems appropriate," and substituting "The commissioner may, when the commissioner deems appropriate,".

SECTION 15. Tennessee Code Annotated, Section 20-9-607, is amended by deleting the section and substituting instead:

(a) The commissioner shall promulgate rules necessary to implement, administer, and otherwise effectuate this part. All rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5. The rules must be published in the standards of professional practice and made available to all licensees.

(b) Current rules, decisions, and policies issued or promulgated by the board of court reporting prior to July 1, 2025, remain in full force and effect and must be administered and enforced by the commissioner, unless otherwise modified or repealed.

SECTION 16. Tennessee Code Annotated, Section 20-9-608, is amended by deleting "board" and substituting "commissioner", and by deleting "fine" and substituting instead "penalty".

SECTION 17. Tennessee Code Annotated, Section 20-9-609(a), is amended by deleting "board" and substituting "commissioner".

SECTION 18. Tennessee Code Annotated, Section 20-9-610, is amended by deleting "board" wherever it appears and substituting "commissioner".

SECTION 19. Tennessee Code Annotated, Section 20-9-611, is amended deleting "board of court reporting fund" in the third sentence and substituting "Tennessee court reporting fund", and by deleting "board" wherever it appears and substituting "commissioner".

SECTION 20. Tennessee Code Annotated, Section 20-9-612, is amended by deleting the language "board" wherever it appears and substituting instead "commissioner".

SECTION 21. Tennessee Code Annotated, Section 20-9-613, is amended by deleting the section.

SECTION 22. Tennessee Code Annotated, Section 20-9-614, is amended by deleting "board" wherever it appears and substituting "commissioner", and by deleting "board-approved" and substituting "commissioner-approved".

SECTION 23. Tennessee Code Annotated, Section 20-9-615, is amended by deleting "board" and substituting "commissioner".

SECTION 24. Tennessee Code Annotated, Section 20-9-616, is amended by deleting the section and substituting:

(a) All moneys collected pursuant to this part must be deposited in the state treasury in a separate fund to be known as the Tennessee court reporting fund.

(b) Disbursements from this fund must be made solely for the purpose of defraying expenses incurred in the implementation and enforcement of this part.

(c) Such expenses must not be payable from the general fund of the state.

(d) Any part of the Tennessee court reporting fund remaining at the end of a fiscal year must not revert to the general fund of the state but must be carried forward until expended in accordance with this part.

(e) The commissioner shall budget annually, in advance, expenditures for programs, services, allocated overhead or chargebacks, and other normal operating expenses as determined by the commissioner. These expenditures must be budgeted at the beginning of the fiscal year and must not exceed the fees to be received by the commissioner, including the excesses accumulated in the Tennessee court reporting fund. The commissioner of finance and administration shall inform the commissioner annually, in advance for budgeting purposes, of the allocation of all overhead or chargebacks.

(f) Subject to approval of the comptroller of the treasury and the commissioner of finance and administration, the commissioner may also contract for services to carry out this part.

(g) As of July 1, 2025, the Tennessee board of court reporting fund must be renamed the Tennessee court reporting fund, and all funds in the Tennessee board of court reporting fund must remain in the Tennessee court reporting fund.

SECTION 25. Tennessee Code Annotated, Section 33-2-403(b), is amended by adding the following subdivision:

(10) Facilities that are operated for the provision of the Employment and Community First CHOICES program and services, as provided in title 71, chapter 5, or Tenn. Comp. R. & Regs. 1200-13, for comprehensive behavioral supports for employment and community living for adults with intellectual or developmental disabilities and severe behavioral or psychiatric conditions or any successor program,

service, or a home and community-based services waiver approved by the centers for medicare and medicaid services pursuant to § 1915(c) of the Social Security Act.

SECTION 26. Tennessee Code Annotated, Section 38-8-102, is amended by adding the following new subsection:

(e) Following the expiration of terms for members appointed prior to July 1, 2025, pursuant to subdivisions (b)(1)(B)-(G), the terms of office begin on July 1 and terminate on June 30 of the appropriate years.

SECTION 27. Tennessee Code Annotated, Section 40-14-311, is amended by deleting "Tennessee board of court reporting" and substituting "commissioner of commerce and insurance".

SECTION 28. Tennessee Code Annotated, Section 52-2-403(a), is amended by deleting the first sentence and substituting:

The department may license services and facilities operated for the provision of disability services and for personal support services, and for the provision of the Employment and Community First CHOICES program and services, as provided in title 71, chapter 5, or Tenn. Comp. R. & Regs. 1200-13, for comprehensive behavioral supports for employment and community living for adults with intellectual or developmental disabilities and severe behavioral or psychiatric conditions or any successor program, service, or a home and community-based services waiver approved by the centers for medicare & medicaid services pursuant to §1915(c) of the Social Security Act.

SECTION 29. Tennessee Code Annotated, Section 52-8-102(f)(2), is amended by inserting the following language after the first sentence:

Effective July 1, 2025, members appointed pursuant to subdivision (c)(1) and subdivisions (c)(3)-(5) serve three-year terms.

SECTION 30. Tennessee Code Annotated, Section 55-17-103(a)(1), is amended by deleting "One (1) industry member shall be selected from each of the state's nine (9) congressional districts" and substituting instead "Three (3) industry members shall be appointed from each of the state's three (3) grand divisions".

SECTION 31. Tennessee Code Annotated, Section 62-1-105(e)(7), is amended by deleting "to implement § 62-1-117".

SECTION 32. Tennessee Code Annotated, Section 62-1-106(c)(1), is amended by deleting the subdivision and substituting:

(1) Before an applicant is eligible to receive the certificate described in § 62-1-107, the applicant must complete:

(A) At least one hundred fifty (150) semester hours of college education, including a baccalaureate or higher degree conferred by a college or university acceptable to the board, the total educational program to include an accounting concentration or equivalent as determined by board rule to be appropriate; or

(B) At least one hundred twenty (120) semester hours of college education, including a baccalaureate or higher degree conferred by a college or university acceptable to the board, the total educational program to include an accounting concentration or equivalent as determined by board rule to be appropriate.

SECTION 33. Tennessee Code Annotated, Section 62-1-106(c)(2), is amended by deleting "candidate" and substituting "applicant".

SECTION 34. Tennessee Code Annotated, Section 62-1-106(d), is amended by deleting the phrase "business law and taxation" and substituting "taxation and regulation" and by deleting "grading papers and".

SECTION 35. Tennessee Code Annotated, Section 62-1-106(f), is amended by deleting the subsection and substituting:

(f) An applicant for initial issuance of a certificate under this section shall show that the applicant has had experience to include providing a type of service or advice involving the use of accounting, attest, management advisory, financial advisory, tax, or consulting skills, as verified by a licensee. The applicant must have gained the experience through employment in government, industry, academia, or public practice. The applicant must have the following experience:

- (1) One (1) year of experience if the applicant is applying for a certificate based on the education described in subdivision (c)(1)(A); or
- (2) Two (2) years of experience if the applicant is applying for a certificate based on the education described in subdivision (c)(1)(B).

SECTION 36. Tennessee Code Annotated, Section 62-1-107(a)(1), is amended by deleting the subdivision and substituting:

(1) The board shall grant or renew certificates to persons who make application and demonstrate that their qualifications, including, where applicable, the qualifications prescribed by § 62-1-106, are in accordance with subsections (b)-(i);

SECTION 37. Tennessee Code Annotated, Section 62-1-107(c), is amended by deleting the subsection and substituting:

(c) With regard to applicants who are licensees of another state, the board shall issue a certificate upon a showing that the applicant holds a license in good standing in another jurisdiction in the United States and at the time the individual was licensed in another state, the individual showed evidence of having successfully completed the uniform Certified Public Accountant Examination.

SECTION 38. Tennessee Code Annotated, Section 62-1-117, is amended by deleting the section and substituting:

62-1-117. Mobility.

(a) An individual whose principal place of business is not in this state but who has a valid license in good standing as a certified public accountant from another state must be granted practice privileges in this state, if at the time the individual was licensed, the individual showed evidence of having successfully completed the Uniform Certified Public Accountant Examination. A notice, fee, or other submission must not be required from the individual. The individual is subject to the requirements in subsection (b).

(b) An individual licensee of another state exercising the privilege afforded under this section and the certified public accountant (CPA) firm that employs the licensee, as a condition of the grant of this privilege, simultaneously consent to the following:

- (1) To the personal and subject matter jurisdiction and disciplinary authority of the board;
- (2) To comply with this chapter and the board's rules;
- (3) That in the event the license from the state of the individual's principal place of business is no longer valid, the individual shall cease offering or rendering professional services in this state individually and on behalf of a CPA firm; and

(4) To the appointment of the state board that issued the license as the agent upon whom process may be served in the action or proceeding by this board against the licensee.

(c) A licensee of this state offering or rendering services or using the licensee's CPA title in another state is subject to disciplinary action in this state for an act committed in another state for which the licensee would be subject to discipline for an

act committed in the other state. The board is required to investigate any complaint made by the board of accountancy of another state.

SECTION 39. Tennessee Code Annotated, Section 62-3-101(b), is amended by deleting "Annual inspections" and substituting "Inspections".

SECTION 40. Tennessee Code Annotated, Section 62-3-115(a), is amended by deleting "a nonresident" and substituting "an applicant" and by deleting "nonresident" and substituting "applicant".

SECTION 41. Tennessee Code Annotated, Section 62-3-128(e), is amended by deleting the subsection and substituting:

(e) Each barber school, college, or shop may be inspected as determined by the board to be necessary to carry out this chapter.

SECTION 42. Tennessee Code Annotated, Section 62-4-103(b)(2), is amended by deleting subdivisions (C), (D), and (E) and substituting:

(C) One (1) manicurist or one (1) cosmetologist who practices manicuring;

(D) One (1) aesthetician or one (1) cosmetologist who practices aesthetics;

(E) One (1) natural hair stylist or one (1) cosmetologist who practices natural hair styling;

SECTION 43. Tennessee Code Annotated, Section 62-4-118(i), is amended by deleting the subsection and substituting:

(i) The board shall promulgate rules regarding the frequency of subsequent inspections of shops after the initial inspection pursuant to § 62-4-118(f).

SECTION 44. Tennessee Code Annotated, Section 62-4-120(h), is amended by deleting the subsection and substituting:

(h) The board shall promulgate rules regarding the frequency of subsequent inspections of schools after the initial inspection pursuant to § 62-4-120(d).

SECTION 45. Tennessee Code Annotated, Section 62-5-201, is amended by deleting subsections (b), (c), and (d) and substituting:

(b) Each person appointed to the board by the governor serves as a member of the board for a period of four (4) years or until a successor is appointed and qualified.

Terms begin on January 1st and terminate on December 31st.

(c) Vacancies occurring on the board must be filled in accordance with this section for the balance of the unexpired term.

SECTION 46. Tennessee Code Annotated, Section 62-6-109(f), is amended by deleting the subsection.

SECTION 47. Tennessee Code Annotated, Section 62-13-206(c), is amended by deleting the subsection.

SECTION 48. Tennessee Code Annotated, Section 62-13-303(d), is amended by deleting the subsection and substituting:

(d) Each applicant who passes the examination shall submit an application for the appropriate license to the commission. If the application is not filed within two (2) years of the date the applicant passed the examination, the applicant must retake and pass the examination in order to be eligible for a license. The commission may, at its discretion, waive this requirement.

SECTION 49. Tennessee Code Annotated, Section 62-13-318(d)(2), is amended by deleting the subdivision and substituting:

(2) Either:

(A) Submission of proof of completion of all classroom hours in real estate courses that would have been required under § 62-13-303 if the licensee had instead maintained an active license during the period of temporary retirement; or

(B) Submission of proof of completion of a commission-approved course consisting of thirty (30) hours of continuing education.

SECTION 50. Tennessee Code Annotated, Section 62-13-319(a), is amended by inserting the language ", not to exceed twelve months" immediately following "one hundred dollars (\$100) per month" in the first sentence, and by inserting the language ", not to exceed twelve months" immediately following "from the time the license expired" in subdivision (a)(2).

SECTION 51. Tennessee Code Annotated, Section 62-13-319, is amended by adding the following as a new subsection (c):

(c) A licensee in good standing with the commission, whose license has been expired for more than two (2) years but has not been temporarily retired under § 62-13-318, may reactivate the license upon:

(1) Payment of the penalty in subsection (a); and

(2) Completion of a commission-approved course consisting of thirty (30) hours of continuing education.

SECTION 52. Tennessee Code Annotated, Title 62, Chapter 18, Part 2, is amended by deleting the part.

SECTION 53. Tennessee Code Annotated, Section 62-36-114(5), is amended by deleting the subdivision and substituting:

(5) Receive, administer, and account for all monies derived under this chapter and transfer these funds to the state treasurer, who shall keep the moneys in a fund to be known as the "geologist regulatory fund." The fund must be used to defray expenses incurred in carrying out this chapter. As of July 1, 2025, the geologist and soil scientist regulatory fund must be renamed the geologist regulatory fund, and all funds in the geologist and soil scientist regulatory fund must remain in the geologist regulatory fund.

Moneys deposited in the fund must not revert to the general fund and must be carried forward into each subsequent fiscal year;

SECTION 54. Tennessee Code Annotated, Title 62, Chapter 76, Part 1, is amended by adding the following as a new section:

(a) A regulatory authority may enter into reciprocal agreements with appropriate officials in other jurisdictions to grant licenses to persons or entities licensed in the other jurisdictions who possess sufficient qualifications as established by the regulatory authority to operate across state lines under mutually acceptable terms.

(b) Each regulatory authority may promulgate rules to carry out this section. All rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(c) As used in this section:

(1) "Regulatory authority" means any board-run, commission-run, or commissioner-run program in the division of regulatory boards of the department of commerce and insurance that issues a license; and

(2) "License" means a license, certificate, or registration for an individual or entity to engage in an occupation, profession, business, or trade in this state.

SECTION 55. Tennessee Code Annotated, Section 63-5-103(c), is amended by adding the following language at the end of the subsection:

Effective July 1, 2025, all members are appointed for five-year terms.

SECTION 56. Tennessee Code Annotated, Section 63-5-103(d)(1), is amended by deleting the second and third sentences and substituting "In the event of a vacancy on the board, the governor shall appoint a new member to serve out the balance of the unexpired term. A member may be reappointed to serve a successive term."

SECTION 57. Tennessee Code Annotated, Section 63-6-102(b), is amended by deleting the subsection and substituting:

(b) In the event of a vacancy on the board, the governor shall appoint a new member to serve out the balance of the unexpired term.

SECTION 58. Tennessee Code Annotated, Section 63-8-105(b), is amended by deleting the subsection and substituting:

(b) A member shall continue to serve until that member's successor is appointed.

In the event of a vacancy on the board, the governor shall appoint a new member to serve out the balance of the unexpired term.

SECTION 59. Tennessee Code Annotated, Section 63-14-101(b)(2), is amended by deleting the last sentence and substituting "In the event of a vacancy on the board, the governor shall appoint a new member to serve out the balance of the unexpired term.".

SECTION 60. Tennessee Code Annotated, Section 63-27-103(e), is amended by deleting the third sentence and substituting "In the event of a vacancy on the board, the governor shall appoint a new member to serve out the balance of the unexpired term.".

SECTION 61. Tennessee Code Annotated, Section 68-115-103, is amended by deleting subsection (b).

SECTION 62. Tennessee Code Annotated, Section 68-115-103(h), is amended by deleting the subsection and substituting:

(h) A member of the commission whose appointment has expired may be appointed to subsequent terms pursuant to this section and § 68-115-104.

SECTION 63. Tennessee Code Annotated, Section 70-1-201, is amended by deleting subsections (b) and (c) and substituting:

(b)

(1) Except as otherwise provided in this subsection (b), each member must be confirmed by the committee of the house of representatives with jurisdiction over subject matters pertaining to agriculture and natural resources; by the energy, agriculture and natural resources committee of the senate; and by joint resolution of the general assembly prior to beginning a term of office.

(2) Members' terms begin July 1 and expire on June 30 of the appropriate years. Members serving on February 28, 2026, shall continue to serve until June 30, 2026.

(3) If the general assembly is not in session at the time a member is appointed to fill a vacancy resulting from the expiration of a term, then the member of the commission shall serve until a new appointee is confirmed as provided in subdivision (b)(1).

(4) If the general assembly is not in session at the time a member is appointed to fill a vacancy not resulting from the expiration of a term, then the new appointee shall serve for the term appointed unless such appointment is not confirmed within sixty (60) calendar days after the general assembly next convenes in regular session following such appointment.

(c)

(1) Each regular term of a commission member appointed by a speaker is four (4) years and each regular term of a commission member appointed by the governor is six (6) years.

(2) A commission member shall not serve consecutive terms. For the purposes of this subdivision (c)(2), a commission member is considered as having served a term if such member has served more than two (2) years of an initial term, a regular term, or an unexpired term.

(3) A vacancy on the commission must be filled by the appointing authority making the original appointment for the remainder of any unexpired term or, if a term has expired, for a regular term.

SECTION 64. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 65. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect on July 1, 2025, the public welfare requiring it.